

23SMCV01715 23SMCV01715

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Case Number: 23SMCV01715 Hearing Date: September 2, 2026 Dept: N

TENTATIVE RULING

Defendants Shawn S. Rabbani and Hertz Investment Company, LLC's Motion to Bifurcate Trial is DENIED without prejudice.

Plaintiffs Mir Ali Akbar Helmi and Mahnaz Yazdanmanesh to give notice.

EVIDENTIARY OBJECTIONS

Plaintiffs submit evidentiary objections to the declaration of attorney John D. Wilson submitted in support of Defendants' Motion to Bifurcate. Plaintiffs' fourth and seventh objections are sustained as inadmissible hearsay and as lacking foundation. Plaintiffs' second and third objections are sustained as improper opinion. The remaining objections are overruled.

REASONING

Defendants Shawn S. Rabbani and Hertz Investment Company, LLC (together, "Defendants") move the Court for an order bifurcating the liability phase of trial from the damages phase of trial, pursuant to Code of Civil Procedure section 598, which allows for bifurcation "when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted" by bifurcation. (Code Civ. Proc., § 598.) Plaintiffs Mir Ali Akbar Helmi and Mahnaz Yazdanmanesh (together, "Plaintiffs") oppose the motion on the ground that bifurcation would duplicate witnesses, prolong trial, risk inconsistent findings, and confuse the jury.

Pursuant to Code of Civil Procedure section 1048, subdivision (b), "[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States."

Defendants have failed to demonstrate that bifurcation is proper here. Defendants argue that it "makes common sense" to try the issue of liability first before permitting testimony on the issue of damages, considering many of Plaintiffs' experts will address the alleged damages sustained. (Mot., p. 4.) Defendants fail to identify which issues are genuinely separable, do not describe the anticipated liability-phase evidence, and do not demonstrate that a liability phase could proceed without the evidence Plaintiffs characterize as damages proof.

Further, the court, over the objection of a party, cannot order the separate trial of an issue of liability when because of the nature of the case it is necessary to prove the plaintiff's damages in order to establish that liability. (Cohn v. Bugas (1974) 42 Cal.App.3d 381, 385-86.) Here, the issues of liability and damages require presentation of the same witnesses and exhibits. Materiality, reliance, and causation turn on the nature and extent of the concealed conditions, and that same evidence fixes the measure of the loss. (SAC, ¶¶ 65, 69.) Separation would require recalling witnesses and reintroducing evidence in a second phase. This duplication undercuts the economy rationale that is the statutory purpose of bifurcation.

Accordingly, Defendants Shawn S. Rabbani and Hertz Investment Company, LLC's Motion to Bifurcate Trial is DENIED without prejudice.